

JOHNSON v CITY OF ANGELS CAMP, et al

24CV47321

DEMURRERS AND MOTIONS TO STRIKE

On June 13, 2024, Plaintiff filed a First Amended Complaint ("FAC") alleging "Intentional Tort" against City of Angels Camp ("City"), Mark Twain Elementary School District ("District"), Alvin Broglio ("Broglio"), Rebecca Callen ("Callen"), Jenny Eltringham ("Eltringham"), Scott McNurlin ("McNurlin"), Diane Bateman ("Bateman"), Christy Miro ("Miro"), Timothy Randall ("Randall"), and Paula Wyant ("Wyant") (collectively "Defendants.")

Now before the Court are two separate demurrers and motions to strike filed by: 1) Defendants City, Callen and Broglio, and 2) Defendants McNurlin, Bateman, Miro, Eltringham, Randall, and the District.

Defendants' separate requests for judicial notice are granted.

Pursuant to Code of Civil Procedure section 430.10(f), a demurrer may be granted on the grounds that the complaint is uncertain. An "uncertain" complaint includes one that is ambiguous and unintelligible. (*Ibid.*) Generally, demurrers for uncertainty are not favored, "unless the pleading is so incomprehensible that a defendant cannot reasonably respond." (*Lickiss v. Financial Industry Regulatory Authority*, (2012) 208 Cal.App.4th 1125, 1135.) Complaints which are disjointed and attempt to "state numerous causes of action in a very loose and rambling manner" may be considered uncertain. (*Craig v. City of Los Angeles* (1941), 44 Cal.App.2d 71, 73.)

Here, the FAC is devoid of any factual allegations including even a single allegation as to the identities of any of the named defendants. The FAC purports to be a single cause of action for "Intentional Tort" with multiple sub-claims thereunder, most of which are incoherently written. The FAC fails to apprise either Defendants, or the Court, as to the factual allegations, the legal causes of action, and against whom each cause of action is being brought. Accordingly, both **demurrers** are **SUSTAINED**, WITH 20 (twenty) days leave to amend. As the Court has sustained both demurrers, the **motions to strike** are **DENIED**, as moot, without prejudice.

The Clerk shall provide notice of the Ruling forthwith. No further formal Order is required.

BANK OF AMERICA, N.A. v GARCIA

19CF12836

DEFENDANT'S CLAIM OF EXEMPTION

On June 15, 2019 judgment creditor Bank of America ("BOA") obtained a judgment against Defendant Lucy D. Garcia ("Garcia") in the amount of \$20,525.79. After Los Angeles County withheld funds, Garcia filed a claim of exemption. BOA has filed an opposition.

Code of Civil Procedure section 706.050(a) states:

Except as otherwise provided in this chapter, the maximum amount of disposable earnings of an individual judgment debtor for any workweek that is subject to levy under an earnings withholding order shall not exceed the lesser of the following: (1) Twenty-five percent of the individual's disposable earnings for that week. (2) Fifty percent of the amount by which the individual's disposable earnings for that week exceed 40 times the state minimum hourly wage in effect at the time the earnings are payable.

As BOA points out in their opposition, Garcia has not provided any information about her income or expenses, nor has she traced any of her earnings to exempt sources. Garcia asserts that funds are exempt pursuant to Code Civil Procedure sections 704.070 (wages) and 704.110 (death benefits). However, it is impossible for the Court to determine the appropriate amount for withholding given the lack of any financial information provided. To the extent, however, any withholding would include social security or public retirement benefits, such earnings are exempt from garnishment.

Garcia's claim for exemption of social security and public benefits or death benefits is **GRANTED** in principle. However, Garcia is ordered to file and serve a financial statement by 3:00 p.m. on November 8, 2024, setting forth the source of her monthly income and whether she is paid monthly, bi-weekly, or weekly so the Court may determine the amount of withholding to be ordered. Any response by plaintiff must be served and filed by 3:00 p.m. on November 15, 2024. The hearing on this matter is continued to November 22, 2024, at 9:00 a.m. in Department 2.

The Clerk shall provide notice of the Ruling forthwith.